

FHS Theory of Politics: Libertarianism

Reading List:

Reading:

Robert Nozick, *Anarchy, State and Utopia*, chapters 3, 7.

Jonathan Wolff, *Robert Nozick: Property, Justice and the Minimal State*, chapters 1-2, 4.

G.A. Cohen, *Self-Ownership, Freedom and Equality*, chapters 3, 4.

Susan Moller Okin, *Justice, Gender, and the Family*, chapter 4.

Michael Otsuka, *Libertarianism without Inequality*, chapter 1.

Further reading:

John Christman, 'Self-Ownership, Equality, and the Structure of Property Rights', *Political Theory* 19, 1, 1991, pp.28-46.

G.A. Cohen, *Self-Ownership, Freedom and Equality*, chapters 9, 10.

----- 'Are Disadvantaged Workers Who Take Hazardous Jobs, Forced to Take Hazardous Jobs?', in Cohen, *History, Labour, and Freedom*, pp.239-254.

Barbara Fried, 'Left Libertarianism: A Review Essay', *Philosophy and Public Affairs* 32, 2004.

Milton Friedman, *Capitalism and Freedom*, chapters 1, 2, 10, 11.

Jeremy Waldron, 'Homelessness and the Issue of Freedom', in J. Waldron, *Liberal Rights*.

Will Kymlicka, *Contemporary Political Philosophy*, chapter 4.

Past Essay Questions:

Are there any inequalities that libertarians should not accept? [2024]

'Left-libertarians need to pick a side – liberty or equality.' Discuss. [2023]

NA [2022, 2021]

Does taxation reduce citizens' freedom? [2020]

Actual Notes

Liberty vs Equality: the Central Value of Libertarianism

The Core Libertarian Tenet

- Libertarians defend market freedoms and oppose the use of redistributive taxation schemes to implement a liberal theory of equality
 - Libertarians are not the only ones who favour a free market, but their explanation to why they favour it – that the free market is inherently just – is what sets them apart

- Utilitarian arguments for free market or that capitalism minimises the dangers of tyranny (John Gray)
- Libertarians do not make an instrumental argument for the free market; rather, they argue that the free market is inherently just in the sense that it is a manifestation of freedom
 - The free market is not argued for because they protect political and civil liberties
 - Rather, people have a right to dispose freely of their goods and services and they have this right whether or not it is the best to ensure productivity
- Free markets are inherently just because people have a right to property and the free markets are an expression of that right
 - Libertarians therefore are opposed to redistributive taxation because it violates people's rights
- Right to property (and other rights) are given priority over other ends
 - Libertarians are not utilitarian of rights for they think no trade offs can be made between anything that includes rights (even a right for a right)
 - Rather, rights act as side constraints; Nozick: "Individuals have rights, and there are things which no person or group may do to them (without violating their rights). So strong and far-reaching are these rights that they raise the question of what, if anything, the state and its officials may do"
- Libertarians are concerned about all rights they specify (right to live, free speech, property), but property takes center stage because it is what the government tends to invade on egalitarian grounds
 - Because people have a right to dispose of their holdings as they see fit, government interference is equivalent to forced labour – a violation, not of efficiency, but of our basic moral rights
- The key idea in the self-ownership thesis is that people do not have non-contractual obligations to give up a fraction of what they produce - that is where 'forced labour' supposedly arises.

Nozick's Entitlement Theory

Summary: In *Anarchy, State and Utopia*, Nozick advanced the libertarian thesis that equality cannot permissibly be generated out of political obligation; while equality might be valuable, it must emerge (if at all) from voluntary choices of individuals. A state-mandated egalitarianism, he argues, conflicts with liberty which he grounds in his central concept of 'self-ownership'. For Nozick, this side constraint of 'self-ownership' manifests itself in terms of property rights: (1) I have control and full ownership of my mind and body, and (2) I have a right to all of the income that I can gain from my mind and body. The corollary of the inviolability of full self-ownership is that the principles of distributive justice must be *historical* in nature. Because of self-ownership, all that needs to be ensured for a distribution *D* to be just is that the income or goods I gain are actually generated by my mind and body –

that the initial acquisition must be just and that the transfer of goods must be just (i.e. voluntary). The egalitarian impulse of equality, Nozick suggests, is inherently patterned in nature – goods must be distributed along some equal distribution *E*. But because full self-ownership involves a result insensitive distribution – that of the free market – any external attempt to order the distribution along some other dimension of equality is a violation of self-ownership, and therefore liberty. Therefore, because state-imposed equality is patterned and result-oriented in this way, while liberty and self-ownership is not, liberty and equality conflict.

Theory of Moral Constraints and thesis of self-ownership

Nozick motivates the notion of rights and their priority from self-ownership, thereby acting as moral constraints that the state cannot violate. These moral constraints are so stringent and so far-reaching that the only permissible state is the ultraminimal state or the night-watchman state i.e. the state only tax for protective services

- The Night Watchman state's tax is not redistributive because redistribution is appealing to the sorts of reason for an arrangement rather than an arrangement itself
 - So, non-redistributive reasons may be plausibly consistent with the Night Watchman and the Libertarian's thesis
- Moral Constraints: Rights act as moral constraints that narrow the means in which we can attain a goal and the range of goals that are attainable
 - We are not utilitarian of rights whereby we can make trade offs between rights of one vs rights of five → it is not permissible to violate one person's right to minimise the rights violated in the society
 - Some contact with Mill's harm principle here
- Justification: why rights as side constraints rather than being a utilitarian of rights
 - Underlying Kantian principle that individuals are ends and not merely means and may not be sacrificed or used for the achieving of other ends without their consent
 - Individuals are inviolable
 - If constraints on a tool were overridable or conditional on something, the tool may not be completely yours, but it nevertheless is a tool
 - Side constraints express the inviolability of other persons

Argument for Entitlement theory of distribution #1: Self-ownership

- Derivation of Self-ownership from the Kantian Principle
 - Deriving self-ownership and stringent rights from moral form to moral content: the form of morality includes F (moral side constraints); the best explanation of morality's being F is p (a strong statement of the distinctness of individuals); and from p follows a particular moral content, namely the

libertarian constraint → not sufficient to just derive an anti-aggression constraint from the fact that individuals have their own lives to lead

- Wants to search for a trait of humans that the moral side constraint is on
- Contrast with animals who have no stringent side constraints → people are distinguished from animals in terms of rationality, free will and moral agency but Nozick claims that we have been unfair in treating them separately
 - Instead, when combined they add up to something significant: “a being able to formulate a long-term plans for its life, able to consider and decide on the basis of abstract principles or considerations it formulates to itself and hence not merely the plaything of any immediate stimuli, a being that limits its own behaviour in accordance with some principles or picture it has of what an appropriate life is for itself and others, and so on”
 - This ability to shape one’s life is necessary and fundamental to strive for a meaningful life → to violate this is to violate their distinction and esteem as a human
- Formulation of the Self-ownership thesis and implications
 - Otsuka: (i) A very stringent right of control over and use of one’s mind and body that bars others from intentionally using one as a means by forcing one to sacrifice life, limb, or labour, where such force operates by means of incursions or threats of incursions upon one’s mind and body; (ii) A very stringent right to all of the income that one can gain from one’s mind and body (including one’s labour) either on one’s own or through unregulated and untaxed voluntary exchanges with other individuals
 - Egalitarians agree with (i) but disagree with (ii); Nozick thinks that (i) implies (ii)
 - G. A. Cohen: The core idea is that agents own themselves in just the same way that they can have maximal private ownership in a thing. This maximal private ownership is typically taken to include the right to fully manage (to use, and to allow or prohibit others from using); the right to the full income; the right to transfer fully any of these rights through market exchange, inter vivos gift, or bequest; and the right to recover damages if someone violates any of these rights. Redistributive taxation (e.g. income of wealth) is incompatible with these rights of maximal private ownership
 - Critical point is the last: from the cardinal “principle that each person is the legitimate owner of his powers”, it follows that redistribution is taxation is theft.
- Connection with equality: Nozick’s conception of equality begins with rights over one’s self and that everyone has the same of such inviolable rights because they are equal

Objection to Rawls's Theory of Justice: the patterned/historical distinction

Rawls' theory: (1) Liberty Principle, (2a) Difference Principle and (2b) The Equal Opportunity Principle

- Rawls views the issue of justice arising through the view of society as a cooperative venture for mutual advantage → people undertake new duties but also generate new benefits when entering society
- The issue of distributive justice is therefore the just division of this social product and of the burdens that produce this
- Rawls this that 2a captures the fair terms of this cooperation
- The reason, for Rawls, why the most well-off are not entitled to what they could maximally achieve under any other scheme of cooperation is because the reason for their success is due to factors 'arbitrary from a moral point of view'
 - In short, the reason why other institutional and distribution arrangements have no valid claim over his is because he denies the notion of meritocracy as one that is possible

Nozick's three replies to Rawls

- Argument from diminished conception of persons: "This line of argument can succeed in blocking the introduction of a person's autonomous choice and actions (and their results) only by attributing everything noteworthy about the person to certain sorts of 'external' factors. So denigrating a person's autonomy and prime responsibility for his actions is a risky line to take for a theory that otherwise wishes to buttress the dignity and self-respect of autonomous beings."
 - Creates an 'untenable metaphysics of the self'
 - Corollary: If we deny positive desert claims, we must also consistently deny negative desert claims i.e. criminals and punishment since a criminal character is a natural liability so to speak → but there are other ways in which we can justify punishment (utilitarian means)
- Denying arbitrariness: Nozick argues that entitlement and desert come apart → being entitled to x does not equal being deserving of x
 - For instance, winning a lottery might not invoke the concept of desert as much as it is invoking the concept of entitlement
 - So, some people may be entitled to their natural assets even if these are undeserved → possession therefore becomes not morally arbitrary
 - Compatible with Rawls' conclusion that desert is a metaphysically troublesome concept
 - Furthermore, differences in natural assets might be correlated with other differences that are not arbitrary from a moral point of view and that are clearly of some possible moral relevance to distributional questions e.g. Hayek argues that under capitalism distribution generally is in accordance

with perceived service to others, which is correlated with differences in ability to serve others

- Argument from the separateness of persons: the difference principle requires that we prevent the better endowed from gaining extra material benefits from themselves unless this would improve the position of the worst off – but this seems to be using the better endowed as a resource for less well endowed, sacrificing one person's welfare for the sake of another – and Rawls fails by his own standards since he accuses the utilitarian of seriously falling for ignoring the separateness of persons
 - Rawls treats natural assets as some sort of collective asset and that everyone has some entitlement on the totality of natural asserts with no one having differential claims
 - And we can only square Rawls' view with Kant's own view of treating men as ends in themselves only if we press very hard on the distinction between men and their talents, assets, abilities and special traits → but this means that there is very little of a coherent conception of a person
 - There is 'no social entity with a good that undergoes some sacrifice for its own good. There are only individual people, different individual people, with their own individual lives. Using one of these people for the benefit of others, uses him and benefits the others. Nothing more.'
- Less important arguments
 - Ad hoc nature of difference principle: Rawls' specify that institutions should place priority on the worst off group. But why would individuals focus on groups and not the worst off individual?

Argument for Entitlement Distribution #2: Against Patterned Theories

- Patterned Theories: current-time slice or end state principle
- Historical Theories: take into account past actions or circumstances → "each according to their contribution" is one such historical view
 - Justice in distribution does not require information on the actual distribution itself but how the distribution came about
- Nozick argument against patterned theories can be interpreted as follows:
 - P1: Self-ownership implies that liberty has priority over all other values i.e. our liberties act as moral constraints in what the state can do
 - P2: Liberty, through voluntary transfer, must upset any patterns of distribution. Call this the Wilt Chamberlain Argument
 - P2a: Equivalently, any patterned theory of justice necessitates involuntary redistribution
 - P4: Therefore, no patterned theory of justice can be just
- Wilt Chamberlain Argument: Let us assume that the egalitarian's preferred distribution is achieved. Call this D1. Wilt Chamberlain is greatly in demand by basketball teams, being a great gate attraction...[and] signs the following sort of

contract with a team: In each home game twenty-five cents from the price of each ticket goes to him.[...] Let us suppose that in one season one million persons attend his home games, and Wilt Chamberlain ends up with \$250,000, a much larger sum than the average income and larger even than anyone else has. Is he entitled to his income? Is this new distribution D2 unjust

- Maintaining D1 requires continuous interference with people's lives and is hence a serious and unacceptable infringement of liberty
- Conclusion from the Chamberlain argument:
 - C1: Voluntary transactions necessarily disrupt patterns
 - C2: If D1 was just, and people moved voluntarily from D1 to D2, then D2 is also just
 - C3: Restoring patterns requires continuous and unacceptable intrusions into people's lives
- Objections to the Wilt Chamberlain Argument
 - Against C1: Nozick's illustration biases matters in his own favour. Many egalitarians do not just advocate for capitalism with equal money but for a transformation of society
 - Against C2: question the implicit premise that whatever is achieved by voluntary steps is just
 - Practical Problem: not easy to tell if a transaction is just → "Your money or your life".
 - Nozick says that what constitutes involuntariness is as follows: "First, one's options must be restricted by actions of others, and second, these constraining actions must themselves violate rights"
 - So, the propertyless proletariat's rights are not being violated by virtue of his environment so he still is not 'choiceless'
 - But if Nozick defends C2 on the basis of intuition and we realise that he is not using it in a way that aligns with our intuitions about voluntariness (by saying that the propertyless proletariat is free), then it weakens his argument
 - Is transfer according to mistake voluntary?
 - Against C3: Not necessarily a system of transfer as rigid as Nozick suggests → filling up taxation forms do not feel like an egregious affront to our liberty
 - Also, egalitarians need not necessarily hope for one pattern but a range of patterns (sufficientarianism that relieves suffering from poverty) aka Anderson
 - But Nozick would say all that matters is taxation happens: taxation is on par with forced labour

Nozick's own entitlement theory

Nozick's entitlement theory has three main principles

1. A principle of transfer – whatever is justly acquired can be freely transferred
2. A principle of just initial acquisition – an account of how people come initially to own the things which can be transferred in accordance with (1)
3. A principle of rectification of injustice – how to deal with holdings if they were unjustly acquired or transferred
4. Implicit conclusion: No one is entitled to a holding except by (repeated) applications of 1 and 2

The conclusion of Nozick's entitlement theory is that 'a minimal state, limited to the narrow functions of protection against force, theft, fraud, enforcement of contracts, and so on, is justified; any more extensive state will violate persons' rights not to be forced to do certain things, and is unjustified'. The alleged corollary of this is that there is no public education, no public health care, transportation, roads or parks since all of these involve the coercive taxation of some people against their will, violating the principle 'from each as they choose, to each as they are chosen'.

Principle 1: Justice in Acquisition and the Lockean Proviso

- Rejects the fact that 'right of first claimant' is legitimate in any way
- Lockean View of Initial Acquisition: Nozick says that 'Locke views property in an unowned object as originating through someone mixing his labour with it'
 - Nozick argues that this gives us the insight as to why one's right to private property are just as strong as rights to one's person or body: they are based on something very like body rights, rights to control one's labour
 - But it cannot be just about mixing because "If a private astronaut clears a place of Mars, has he mixed his labour with...the whole uninhabited universe, or just a particular plot"
 - Why is this not a way of losing what I own rather than gaining something that I did not
 - Locke addresses this through the Lockean proviso: that appropriating a land gives back to mankind more than one takes → but is problematic because why do you not just gain the increment rather than the whole plot
- Three interpretations of Nozick's reaction to Locke
 - First, to suppose that Nozick broadly accepts Locke's 'labour-mixing' defence of private property, and though he criticises Locke's arguments, an amended Lockean position is ultimately acceptable
 - But Nozick gives no suggestions about how the labour-mixing argument can meet its objections and Locke handles it via theology which Nozick cannot appeal to
 - Second, Nozick rejects Locke's argument but concludes that a version of the Lockean proviso is a necessary condition for the justification of appropriation.

On this interpretation, no suggestion as to what are the sufficient conditions is made by Nozick

- This says that Nozick has no theory of justice in acquisition → means that Nagel's criticism as libertarianism without foundations is even more significant
- Third, Nozick is taking and using the Lockean Proviso as a necessary and sufficient condition for the justification of appropriation (though adapting it)
- Lockean and Nozickian Proviso
 - Locke's proviso is that there be "enough and as good left in common for others" as a necessary condition for you to acquire an unowned piece of land
 - An objection that Nozick has to deal with is that perhaps it was true of land once that there was enough and as good left in common for others and permitted X's acquisition. But it is not true now. So, it must be the case that we can 'zip back' all the way to X's acquisition to say that X's acquisition was impermissible
 - Nozick resists the objection is through the thought that even if there is not enough and as good land for another, there still may be, as a result of appropriation, other things which counterbalance the "diminution in opportunity"
 - A system of private property makes people better off because it "increases the social product by putting means of production in the hands of those who can use them most efficiently..."
 - Compensates non-owners
 - This motivates the Nozickian Proviso: You may acquire previously unowned land (and its fruits) if and only if you make nobody else worse off than she would have been in a state in which no land is privately held but each is free to gather and consume food and water from the land and make use of it
 - Critics think that Nozick, once he admits such a proviso into his argument, blurs the line between his argument and patterned theories because it introduces a patterned element in a theory because it is no longer defined wholly by its procedures but by its effects on others

Principle 2: Justice in Transfer

- Nozick thinks that it is 'not clear' how people can reject the entitlement theory of justice solely on the principle of justice in transfer
- Focuses on a transfer being just if and only if it is voluntary and Nozick thinks that because justice in transfer appeals to procedures rather than the actual distribution itself, it is incompatible with and thus forces us to reject any patterned theory
- Analogue development of argument under Wilt Chamberlain argument
- Taxation = Forced labour

- It is equivalent to asking the a farmer to work, on the threat of imprisonment, that 10% more to give the starving children food

Principle 3: Justice in Rectification

- More questions than answers
 - If you make a fortune from a stolen pound, do you pay back the pound or the fortune
 - Is it ever right to let bygones be bygones and relatedly how far must one go in wiping clean the historical slate of injustices
- Nozick's answer on the complexity of questions that arise: "These issues are very complex and are best left to a full treatment to the principle of rectification. In the absence of such a treatment applied to a particular society one cannot use the analysis and theory presented here to condemn any particular scheme of welfare payments, unless it is clear that no considerations of rectification of injustice could apply to justify it. Although to introduce socialism as the punishment for our sins would be to go too far, past injustices might be so great as to make necessary in the short run a more extensive state in order to rectify them."
- Two insights from Nozick's answer
 - First, Nozick's libertarianism might not be as inegalitarian as we think. If welfare payments are justified on the basis of historical injustice (exploitation of classes, race, gender) and not on the basis of material inequality per se, then it seems that the welfare state is compatible with Nozick because our historical procedures are definitely problematic and unjust
 - Second, Nozick once again (along with taxation to finance the minimal state) shows us that state interference for libertarian values is permissible. This can be instrumental in constructing a justification that invokes the idea that equality underwrites liberty

Nozick's Pluralist Conception of Utopia

- Basically, thinks that a true libertarian society is what that supports plural ways of life, provided that individuals can leave and enter societies as they will
 - Communist and capitalist structures can flourish under the libertarian macrostructure
 - There seems to be a contractualist echo here: that people can live in these societies insofar as they voluntarily consent to these socio-economic and political arrangements that characterise them
 - Is Nozick merely applying contractualism then?
- Singer thinks this conception is unstable:

Criticisms of Nozick's Entitlement Theory

Objection Class #1: Against Nozick's Libertarianism in general

Libertarianism without foundations

- Some critics assert that Nozick has no argument for his entitlement theory or that it is purely intuitive → even if it is true that a theory of justice must be historical, why does it have to be his?
- Reply: there are two arguments that Nozick makes
 - The first is an intuitive one like Rawls, trying to draw out the attractive features of the exercise of free property rights
 - The second attempts to derive property rights from the premise of 'self-ownership' which in turn is derived from the Kantian premise of treating individuals as moral equals i.e. 'ends in themselves'
- But Nozick's lack of foundations is clear in the case of defending the thesis that voluntary transactions retain the justice of distributions
 - Steiner: "Despite the problems raised...we should acknowledge that we must permit at least some voluntary transfers, unless, as Nozick repeatedly reminds us, we wish to prohibit 'gift-giving and other loving behaviour'. But we must remember that Nozick **does little more than rely on the obviousness that voluntary transfers suffice for justice**. And as we have surely seen, this principle, particularly as interpreted by Nozick in a way in which force and fraud are prohibited yet exploitation and mistaken contracts are allowed, is far from obvious."
 - Wolff points out that Nozick however uses voluntariness in an unintuitive way

Okin's Feminist Attack on the incoherence of Nozick

- Nozick's argument that this moral status implies a full right to property of whatever I produce is highly unstable, once we include women into Nozick's picture of society. If everything that I produce from my body belongs to me, then this includes a woman's baby, and the person the baby becomes. In fact, reproduction is one of the few things that we can assuredly say relies on almost nothing but the woman's body (and the man's sperm). The unsettling corollary of Nozick's strong self-ownership is that, ironically, no one can own themselves, because someone made them. There is no way, according to Okin, that we can consistently differentiate between production of a human vs production of fruits or goods. Nozick's conception of self-ownership cannot deal with the fact of reproduction and its conclusion turns its goal of the 'separateness of persons' on its head.
- A possible reply: Can we handle this point by saying that self-ownership is always limited by the self-ownership of others? So my right to the products of my body does not include the right to own another person's body even if it is a product of my body.
 - Possible to do so by appealing to Nozick's Kantian premise – we need a non-arbitrary way to classify goods – that does not appeal to differentiated nature of reproduction vs production

- What matters and what overrides our right to ownership in the case of reproduction is that the child is a special case of a 'good'. Kant thinks that unlike all other subjects in the world (such as animals and surely objects), humans are the only kinds of subjects that occupy both spaces in the noumena (reason) and the phenomena (physical) realm. All other subjects reside wholly in the phenomena realm where they are liable to deterministic physical laws. But because I uniquely reside in the noumena realm – the realm of reason – I am capable of self-determining reason and autonomy. This special capability is what instantiates my status of being an 'end in myself' which is what the Libertarian interprets as self-ownership. My status of self-ownership is not derived from the fact that I created myself but rather the fact that I am an autonomous being capable of reason. In this sense, it matters not how I am created as such, but rather the very fact that I exist in the way I do – as a self-determining, reason-capable human. This is why Okin's so-called 'paradox' fails.

Overvaluing Entitlement

- The entitlement theory of justice seems to privilege entitlement as the core focus of a theory of justice
 - But as we see in other works, there are a plurality of other values that could be given focus such as respect, reciprocity, desert etc
 - Even if we think that Nozick does not necessarily exclude considerations of other values, he at least has to tell us why entitlement has priority over these other values, and why we cannot derive these other values from a working conception of self-ownership (which seems plausible)

Objection Class #2: Against the Proviso and the principle governing initial acquisition

G. A. Cohen's objection to Nozick's Proviso

Summary: Cohen fundamentally rejects Nozick's Proviso as he thinks it is problematic in more ways than one. He also thinks that self-ownership and equality are fundamentally at odds and the only way to have equality without violating self-ownership is a structure of public ownership of initial resources so rigid that one need not ever exercise property rights derivative of self-ownership, since no one owns worldly resources in the first place. But this, he thinks, is implausible.

Structure of Nozick's claim

- Freedom is not central to Nozick's thesis; rather, the central claim Nozick has is that our self-ownership constitutes an inviolable right and any freedom we enjoy is derivative from it
 - Self-ownership is the primary generative principle for our rights to property

- The self-ownership thesis has undeniable intuitive force because we should have a right to decide what is to be done with our own body parts
 - The egalitarian impulse would be weak to reject the self-ownership thesis and should instead attack the inequality of ownership of external resources to defend the inequality of condition they oppose
- Cohen argues that there is no economic arrangement that (1) upholds the principle of self-ownership but (2) enforces equality of raw worldly resources and (3) thereby preserves equality of final condition
 - Self-ownership and socialist equality are therefore incompatible

Criticism of Nozick's Proviso to show that the inegalitarian distribution is unjustified even if we accept self-ownership

- We need to ask why is the initial acquisition of unowned objects not theft of what should be held in common
 - What Nozick says – that somethings come into the world already attached to people having entitlements over them – is relevantly false since some things are naturally occurring
- Nozick is right in pointing out that 'the crucial point is whether an appropriation of an owned object worsens the situation of others'
 - What is in contention is what should count as worsening the situation of others
 - Nozick's refinement: 'A process normally giving rise to a permanent bequeathable property right in a previously unowned thing will not do so if the position of others no longer at liberty to use the thing is thereby worsened'
 - Nozick's benchmark is to compare its privatisation and its effects on others with the counterfactual where the asset A had remained in general use
 - If no one's position was made worse compared to this counterfactual of general use, then it is permissible for someone to lay claim to A
- Objection #1: Nozick's general use counterfactual is not the unique counterfactual to use
 - Nozick implicitly suggests that "the only counterfactual situation relevant to assessing the justice of an appropriation is one in which O would have continued to be accessible to all"
 - Cohen suggests that there are other relevant counterfactuals even if we accept that we should, as suggested by Nozick, compare the privatisation case with the well-being of others had this privatisation not happened
 - How Nozick's benchmark plays out: Consider A and B would be able to acquire m and n respectively from commonly owned land. Now A can acquire the land and offer B $n+p$ income and receive $m+q$ himself, with $q>p$, and this

additional income is due to A's administrative skill. Now, B is better off compared to the general use counterfactual, hence satisfying Nozick's Proviso

- Why Nozick's Proviso is too weak: Change the scenario if B acquired the land, he could generate q for himself and pay A p and thus be better off than if A acquired the land. So, even though in the above example B might satisfy Nozick's proviso, A has no right to force B to accept his privatisation of the land since he is not better off compared to the new counterfactual of his own privatisation
 - Collapses into a doctrine of first-come, first-serve which seems implausible to be a bedrock of justice
- There are other counterfactuals that might be relevant: Consider the scenario that B is actually a much better administrator and will be able to pay himself and A more than if A acquired land → A's acquisition is pareto inferior, but still satisfies Nozick's proviso
- An example makes this even more stark: suppose A was talentless and instead asks B to organise the land to accrue benefits, and pays him the same $n+p$ wage. B, preferring this to starvation, accepts the contract. Why should B accept this? And why should this be a just initial acquisition
- Insight: Nozick transforms Locke's proviso in two ways
 - Legitimate way: permit failure to leave enough and as good provided that sufficient compensation is forthcoming – refashions Locke's proviso in an appropriately general fashion
 - Non-legitimate way: weaken the proviso by considering not what might or would have happened tout court, absent the appropriation, but would would have happened on a special hypothesis of continued general access
- Nozick asks the relevant question to motivating the proviso: do 'the situations of persons who are unable to appropriate [is] worsened by a system allowing appropriation and permanent property'
 - He develops the answer along the lines of the utility of private property and risks, incentives and so forth but he does not invoke these considerations to form a utilitarian justification
 - Rather, his argument is that 'if a private property system exists, then the fact that some people own no or little private property in it is not a reason for removing in'
 - It is not that a private property system, being best, should be brought into existence
 - The propertyless proletariat only has a grievance if his situation is worse off than if there were no system of private appropriation and it was purely common ownership
- Objection #2: Even though Nozick does not make a utilitarian justification for the private property system, the fact that he references and makes a comparative against

the general use counterfactual over the well-being of separate individuals means that his argument is, in turn, a matter of contingent fact, and therefore is vulnerable to empirical counterexample

- Hal Varian: who argues that 'market socialist' or 'people's capitalistic' property arrangements are more productive still than the pure capitalism Nozick favours under certain conditions
- But Varian's counterexamples are irrelevant because Nozick artificially restricts the range of comparisons to that under which there is no private ownership system
 - Once we broaden our range of comparisons, then we reach a defensibly strong Lockean Proviso that forbids the formation of full liberal private property
- Objection #3: the connection between freedom and private property is an ideological illusion – Nozick is inconsistent
 - Nozick disallows taxation whose purpose is not to protect property rights because it violates property rights → a fortiori, he would regard an objectively paternalistic policy as objectionable
 - But Nozick permits objectively paternalistic treatments of people: he permits appropriations that satisfy nothing but his proviso, allowing A to appropriate against B's will when B benefits as a result or as long as BN does not lose

Incompatibility of self-ownership and equality

- Impossible to construct an economic constitution that combines the premise of self-ownership with the egalitarian impulse of equality of worldly resources
- Two ways to achieve the latter equalisation
 - Arrangement 1: Placing all external resources under the joint ownership of everyone in society, with each having a veto over what is to be done with them. That regime, together with self-ownership, ensures equality of condition, but the joint ownership element deprives the self-ownership with which it is combined of its intended effect, which is the provision of autonomous self-governance since people can do virtually nothing without using parts of the external world
 - Arrangement 2: Equalising rights in external resources by distributing an equal amount of them to each person. Then each, if self-owning, could do with his share as he pleases. This yields a truly intermediate constitution, but fails to the secure equality of condition socialists prize and hence, socialists must reject self-ownership
- Assessing A1: self-owning people would be unable to command unequal amounts of wealth in a system without private property and endowed with vetos over commonly held assets despite differentiated talent

- Objection: while it generates equality of condition + retains self-ownership because no one's private property rights are being violated due to redistributive tax, it defeats the purpose of self-ownership
- Purpose of self-ownership is to lead a genuinely autonomous life → Kantian premises
 - But the joint world ownership entitles a person to prohibit another's wholly harmless use of an external resource and is thus inconsistent with the most minimal effective self-ownership
- A1 shows us that honouring people's self-ownership requires extending to them a freedom to live their own lives which is incompatible with the equality of condition prized by socialists
 - Self-ownership in A1 is merely formal and hollow → if we attain such self-ownership, we do not gain the intuitive appeal for self-ownership that Nozick sets out for us in being able to direct and construct our meaningful life
- Three conclusions:
 - First, A1 shows that strict socialist equality is compatible with the freedom that defenders of capitalism boast that everyone has in capitalist society, since that freedom is nothing more than formal self-ownership and that obtains in A1
 - Second, such freedom becomes a very confined freedom and it remains to be shown that equality can be reconciled with a more robust freedom
 - Third, such freedom is not self-ownership but autonomy, the circumstance of genuine control over one's life; the right conclusion is that, for real freedom, or autonomy, to prevail, there have to be restrictions on self-ownership and that is ironical since it is autonomy that attracts us to self-ownership
- A2 (the Steiner constitution): institutes private property from the start but forbids the inegalitarian Nozickian scramble by privatising resources in an initially equal division. This is not analogous to Dworkin's constitution, since Steiner makes no provision for compensating differentiated talent
 - Equal division generates capitalism since people have differentiated talent and luck and thus some people make more productive use of their resources than others, accruing greater income → so does not achieve equality of condition
 - Dworkin thinks that Steiner's starting gate theory does not sufficiently compensate for natural talent differentials and is thus an incoherent mix of different theories of justice → Cohen thinks that the foundation of the starting gate theory is the contrast between persons and worldly resources as possible objects of rights and egalitarian dispensation → our personal powers are objects of rights and not egalitarian dispensation

- Otsuka suggests that Nozick's key contention against redistributive taxation is not because it is 'forced labour' but specifically because it is a violation of property rights instantiated by our equal moral worth as persons → therefore, to dispute Nozick's contention against taxation is to either (i) deny that we have a libertarian right to self-ownership or (ii) that this right is not as stringent as we might think
- He suggests that (ii) is quite easy to say because any product that we create is created against the backdrop of an array of inputs that is not our own i.e. roads, land etc → our right to ownership is not as stringent as we might think because we do not own fully the inputs to any product

Objection Class #3: Problems with Liberty

Impoverished Conception of Liberty

- I think that the main problem with Nozick's thesis of self-ownership as freedom is that he makes an unjustified leap from the Kantian basis that people should be able to shape their own lives, to the establishment of full and stringent formal property rights. In fact, if we reconsider the second formulation of the categorical imperative, that people are 'ends-in-themselves', this really suggests a much more substantive conception of self-ownership that clearly exhibits contours of republican freedom – that of autonomy, that I have "genuine control over [my] own life" and am not subject to some external, arbitrary will.
- Observe that this substantive conception of self-ownership as autonomy is not coextensive with Nozick's formal account – I can have limited rights over my own property due to taxation, but this does not mean I am not free to pursue my life plan. I can also fail to be autonomous when I have full property rights over what I own, as Cohen suggests – if in a scheme of joint ownership on land where we all have full property rights to what we produce, I am at the will of others to be allowed to produce goods. Nozick's formal account fails to capture the notion of republican liberty that self-ownership instantiates. A substantive conception of self-ownership – 'autonomy' – is far more befitting, I think, of the name 'self-ownership' and of the title 'freedom', for I can now genuinely direct my life.
- Kymlica's take: inadequate account of treating people as equals, even on Nozick's own view of what is important in our lives
 - Substantive self-ownership involves the 'right to choose which of one's abilities to develop' → idea that in the central areas of one's life, in our most important projects, we should be free to act on our own conceptions of the good
 - Prefer this to a mere formal self-ownership of formal property rights since part of Nozick's defence of formal self-ownership rests on substantive self-ownership; it is precisely this capacity for substantive self-ownership – the 'ability to form a picture of one's whole life...and

to act in terms of some overall conception of the life one wishes to lead' – which is the fundamental basis of his theory of rights

- The propertyless proletariat has no more full substantive self-ownership than the self-ownership in Cohen's world of joint ownership over worldly resources

Problems with Liberty

- Confusing negative and positive liberty
 - Nozick seamlessly goes in and out of negative and positive liberty: on one hand, Nozick seems to suggest that liberty is positive in nature through justifying self-ownership via the fact that people should be able to positively pursue what they desire but he also seems to suggest that liberty is negative insofar as it constitutes a violation of rights
- Patterns can be enforced without reducing liberty
 - Ryan's analogy: in universities, teaching positions are held by various people ostensibly by patterned criteria such as qualifications and ability. Thus, in some sense, we have a patterned set of holdings. The idea that these positions should be freely transferable by gift or sale seems absurd. But it would be even more absurd to suppose that prohibiting people from bequeathing their professorships to members of their families is a violation of their liberty even if it stops people from doing things with their holdings → what is to count as liberty depends on a pre-existing account of what rights we have
 - But Nozick would say we do have such an account which are property rights

Objection Class #4: Problems with Self-Ownership

Millian Objections to self-ownership from legal realism about property rights

- Self-ownership
 - Absolutist view of self-ownership which generates uncompromisable legal property rights
 - Fried wants to show that the inference from self-ownership to uncompromisable legal property rights is unstable
 - Both Left and Right Libertarians agree that Self-ownership implies a "determinate, complete and consistent set of legal rights that can be derived conceptually by starting with certain core rights over one's body, and radiating out to ownership of the things one produces with one's labour"
- Functionalist formulations of property
 - Fried appeals to Holmes' realist formulation of property: for Holmes, property rights is to be understood in functional terms i.e. "the power to act (or inactivity) in certain concrete fashions with respect to property"
- How this implies the incoherence or instability of self-ownership and property rights

- If we redescribed rights as a network of reciprocal powers and incapacities, Hohfeld showed that in enlarging any one party's formal powers, we necessarily diminish everyone else's
 - If S has the absolute right to operate a meat-rendering plant on Tara, what we are really saying is that her neighbours are legally powerless to stop her from doing so, even if her actions will make their own property less usable to them
- Coasean formulation in economic terms: granting private property rights over some land renders social cost to others i.e. making them unable to enjoy their own private property due to pollution etc
- This means that the enlarging of property rights, licensed by self-ownership compromises the property rights and thus self-ownership of others
- Echoes of Mill's Harm Principle: creation of ownership rights generates a myriad of legal disabilities on third parties
 - As Nozick argues, we cannot choose to trade side constraints off against others – so how are we to handle this?
 - A robust interpretation of interests vs rights?

Possible Reply: Fried obfuscates between violating interests and property rights; property rights is to be understood more negatively in relation to other people

- Fried is disingenuous in appealing to mostly the positive aspect of the formulation of property: "the power to act in certain concrete fashions with respect to property"
 - Just because I can act in certain ways such as entry into an area, say a public park, does not mean that I own the park
 - Ownership and property rights seem to emphasise more on the fact that I can prohibit others from entry into my home
- In turn, if we re-examine the Coasean example, the enlargement of my property rights, while inducing social costs on third parties, will not violate their property rights or ownership status as such, but rather than enjoyment of public or common resources, such as the air or the water
 - Likewise, when I acquire a plot of land, I enlarge my property rights, but it would be incorrect to say that I am compromising the property rights of others just because they are no longer allowed to enter the plot of land
 - Rather, their property rights are diminished only if they initially could prevent me from entering the plot of land, but no longer can do so
 - This clearly is not the case, which shows Fried's error

Objection against the inference self-ownership to full property rights

- How does self-ownership yield full property rights?

- Nozick says that market exchange involves the exercise of an individual's power which in turn allows us to own whatever comes from the exercise of those powers in the marketplace
 - But we require the use of things beyond our own powers such as worldly resources → so, I can claim the benefits accruing from that only if I actually control or own those things → depends on voluntary transfer and legitimate initial acquisition
- If the Proviso is in error, then one cannot have legitimate claim to whatever comes from the exercise of those powers in the marketplace, so we do not have full property rights

Extensions of Nozick's Libertarianism

Milton Friedman: What kind of free market do Libertarians support?

Specifies notions of liberty that Nozick fails to

- One might question that the self-ownership rights derives from itself only economic rights but this may have little relevance to political rights
 - Friedman argues that there is a correlation between capitalism and the expansion of political rights and that capitalism or the free market is a necessary condition for political freedom
- Friedman, like Hayek, defines freedom as the absence of coercion from one man to another
 - Implicitly, he denies that one's endowments constitute a limitation of liberty and compares the households in the free market to be like "many Robinson Crusoes" i.e. one's inability to secure food and drink etc may simply be a limitation of one's power but not necessarily a limitation on one's liberty
 - Seems to be a mixture of republican and negative liberty
 - Note how this directly confronts Waldron's argument
- Friedman thinks that the free market secures freedom because the "household always has the alternative of producing directly for itself, it need not enter into any exchange unless it benefits from it. Hence, no exchange will take place unless both parties do benefit from it" → households are allowed to be private contracting parties so that every transaction is strictly voluntary
 - Liberty or the absence of coercion is thereby underwritten by the existence of alternatives → but is this a robust conception of liberty? Questions about the realness of existence
- Friedman also thinks that the free market secures freedom because it separates economic power from political power, therefore reducing its power to coerce
 - He gives the example of McCarthyism where the government was unable to coerce government officials because of the options in the private market → acted as a fundamental protection

- If Friedman's concern is about the accumulation of power, what about economic power generating political power in monopolies?

Role of the Government

- Friedman rejects the following policies: price support for farmers, minimum wage, governmental control of output, tariffs, detailed regulation of industries and social security programmes such as compelling individuals to pay for a retirement fund
- The role of the government is simply to be a forum to determine "the rules of the game" and as an umpire to interpret and enforce the rules decided on
 - But if the market is free, what rules of the game does Friedman hope for? As Friedman says, the free market reduces the range of decisions that the government needs to decide on
 - Setting up legal rules to enforce property rights etc or to enforce contracts between private parties + responsibility for monetary system and monetary policy
- Problem of Monopolies
 - Friedman admits that "monopolies imply the absence of alternatives and thereby inhibits effective freedom of exchange" but that the free market monopoly is the lesser evil compared to the government monopoly or the public regulation of monopoly since the private monopoly is more liable to changes in competitive pressures in its environment and thus is transitory
 - But Friedman does admit that if the short-run effects of the private monopoly is intolerable, then we might consider public regulation or ownership
- Problem of Public Goods
 - All Friedman says is that we must be sure that the public goods the government provides are true public goods in the sense of being excludable → he argues that a city park is a true public good but Yosemite is not because there are few entry points and thus polling stations can be set up
 - But he still allows for the provision of public goods, just that he thinks that there are few public goods
 - Cost of privately providing highways are extremely difficult and costly so it is much cheaper to charge individuals roughly to their proportion to the use of the roads → difficult to do so through a private enterprise without establishing an extensive, powerful monopoly
- Denies that action through paternalistic grounds are ever right
 - Children is the only difficult one to consider since trust in parents rests on the principle of expediency rather than any actual substantive principle

Friedman on Distribution of income

- Friedman thinks that capitalism is not correlated with increasing inequality but correlated with comparatively better equality than socialist or communist societies
 - Even if this is true, the first clause is obviously empirically false now

- He claims this is because progress has freed people from backbreaking work and made available to them products and services that were formerly the monopoly of the upper class
- Implausible to distinguish between inequality in personal endowments and in property vs inherited wealth non-arbitrarily because inheriting height for example is no different from inheriting a trust fund
- Market plays a primarily allocative, not distributive role
 - But because this allocative function is predicated on mutual advantage, in a sense it advantages all parties that are advantaged. Further, efficiency increases the social product as a whole
- Marx's criticism: labour is exploited because the whole of the social product is produced by them but only part of the product goes back to them
 - Friedman thinks that labour is exploited only if labour is entitled to what it produced and Marx fails to account that labour is perhaps only entitled to 'marginal product' i.e. the amount added by them rather than the whole product
- Only a flat rate tax is permissible rather than a graduated taxation rate based on the principle of redistribution + abolition of corporate income tax

Why Welfare Payments fail

- Minimum wage bad because increase unemployment
 - Duflo and Banerjee call this napkin economics
- Public Housing can only be justified on paternalistic grounds, because citizens will always be subjectively better off if given the equivalent amount of cash compared to subsidies on public housing

Direct Appeal to Liberty

- Not a plausible interpretation of Nozick since Nozick's self-ownership is not derivative of liberty; rather liberty is derivative from it
 - Such theorists instead interpret libertarianism as a theory about liberty and centred around liberty
- The simple argument is:
 - P1: An unrestricted market involves more freedom
 - P2: Freedom is the fundamental value
 - P3: Therefore, the free market is morally required
- Choosing what sorts of liberties are important
 - What sorts of liberties we have an essential interest in based on weighted preferences of individuals
- Neutral Liberty as foundational: each person is entitled to the most extensive liberty compatible with a like liberty for all

- This greatest liberty principle is different from Rawls because Rawls' principle is based on how liberty promotes our interests while this liberty principle is just focused on maximising freedom for each person
- Here, our concern for liberty is derived from the claims of people to equal consideration
- But difficult since neutral liberty loses contact with our intuitions that some liberties are more important or count more than others → not a neutral some of choices
- Purposive liberty: Taylor's conception of freedom as from the fact that we are purposive beings
 - But a purposive version of the greatest liberty principle is just a restatement of Rawls
- Connection between freedom and capitalism
 - I just think this is clearly problematic

Contractarian Appeal to Mutual Advantage

- Libertarians admit Nozick's argument fail because he defends his conclusions via a Kantian egalitarian idea of treating people as ends in themselves
 - If we begin with this idea that each person matters equally, then justice will require something other than Nozickian self-ownership
- Presenting libertarianism in contractarian terms
 - Mutual advantage theories use a contract device not because there are self-originating moral claims, but because there is no moral equality underneath our natural physical inequality → the modern world view rules out the traditional idea that people and actions have any moral status
 - Nothing right or wrong about one's actions even if they involve harming others → society is predicated wholly on mutual advantage → Gauthier who presents contractarianism as moral artifice
 - Problem #1: depends on rough physical equality characterised by Hume's circumstances of justice → then exclude people who are disabled (Nussbaum)
 - Problem #2: Prisoner's Dilemma for Compliance → collective action problem and therefore requires a coercive state for punishment
 - Gauthier thinks that people can overcome collective action problems without the threat of punishment from a coercive state by adopting the principle of constrained maximisation
 - People want to maximise their well-being through cooperation
 - If social convention itself is 'just' (i.e. mutually advantageous), and if others can be trusted to cooperate, then people should view cooperation as a 'moral' obligation that precludes the possibility of defecting for self-interested reasons

- Mutual advantage theories mimic traditional morality
 - Because of bargaining and inherent differences in physical condition, some people have outsized role in determining the precepts of justice
- How does this justify a libertarian regime? No natural right of self-ownership since Gauthier denies this
 - Libertarians argue that respecting self-ownership and property rights is mutually advantageous but does not justify any further rights
 - Seems quite implausible when you account for inequalities in bargaining power

Left Libertarian Alternatives and their criticisms

Otsuka's Alternative

Otsuka is exploring the implications of the point: that a lot depends on what principle for ownership of external resources we have to combine with self-ownership. If we combine self-ownership with an egalitarian principle of initial endowments in external resources (e.g., land) then we can get more egalitarian distributions without violating self-ownership.

- Analysis of Nozick's objection towards taxation
 - Nozick believes that a conditional income tax on high income is no less than a 'necessity income tax' that amounts to forced labour. But such a tax cannot literally constitute forced labour since it would be so easy to avoid
 - Nozick's complaint against redistributive taxation is not essentially a complaint about being forced to work, but it is an objection to the violation of property rights
 - The complaint against the imposition of a luxury income tax on the weaver must be grounded in the claim that she has not forfeited her rights to, but rather legitimately owns, that which she has used to weave and has woven, and that a redistributive income tax would violate her rights of ownership in these things
- Considering the actual mode of production: when one needs to make use of the world in order to earn income, it seems that Nozick's claim against redistributive taxation is much more difficult to get off the ground
 - The case of the farmer who is forced by the government, on pain of imprisonment, to give half of whatever income she earns from farming to hungry orphans, is only equivalent to cases of forced labour if the following premise is true: in addition to having a right of self-ownership, one also possesses a right of ownership over the land that she farms that is as full as her right of ownership over herself
 - If not so, then lesser infringement of her property rights
 - This is why we need to question how one comes to have rights of ownership over bits of the world

- Nozickian Proviso: You may acquire previously unowned worldly resources if and only if you leave enough so that everyone else can acquire an equally advantageous share of unowned worldly resources
 - Prima facie plausibility because it leaves no one at a disadvantage, which she claims is the intuition behind Nozick's own proviso → basically, passes the envy test like Dworkin
 - He suggests that Nozick's version of the Lockean proviso is too weak since it allows a single individual in a state of nature to engage in an enriching acquisition of all the land if she compensates all others by hiring them and paying a wage that ensures that they end up no worse off than they would have been if they had continued to live the meagre hand-to-mouth existence of hunter gatherers on non-private land
 - Objectionable because it condemns others to such a miserable existence and because it is manifested unfair that a first grabber be allowed to monopolise all opportunities to improve one's lot through acquisition
- Egalitarian Proviso: You may acquire previously unowned worldly resources if and only if you leave enough so that everyone else can acquire an equally advantageous share of unowned worldly resources
 - Welfarist specification: Someone else's share is as advantageous as yours if and only if it is such that she would be able to (by producing, consuming, or trading) to better yourself to the same degree as you, where 'betterment' is to be measured in terms of level of welfare understood as the 'satisfaction of the self-interested preferences that the individual would have after ideal deliberation while thinking clearly with full pertinent information regarding those preferences'
 - Is there a problem with the welfarist specification → Dworkin's criticism via Tiny Tim having greater opportunity for welfare and still having a legitimate claim for a greater than equal share of worldly resources to compensate for his disability
- Application: Otsuka accepts an 'equal-absolute-level' reading
 - Consider A and B where A is less well off than B in the absence of any resources and if A were to acquire all of the island resources, he would end up equally as well off in terms of opportunity for welfare as B
 - Hence, the equal absolute level reading suggests that the proviso would be uniquely satisfied by a distribution where A has everything and B has none while an equal increment of increase reading, the proviso would be satisfied only by a distribution in which A and B acquire equally large plots of land
 - Otsuka thinks we should not punish someone for their inability to be as well off as another under an equal amount of resources → problem of expensive taste

- Otsuka thinks that A has a legitimate claim on all of the resources while B is entitled to none
- Reconciling self-ownership and equality called for by the egalitarian proviso
 - Cohen would argue that the affirmation of the egalitarian proviso implies the denial that we have a libertarian right to self ownership since he claims: an egalitarian might reject initial resource equality on the ground that resources need to be differentially distributed to compensate for talent differences. But that ground of rejection of resource equality requires denial of the tenet, derived from the [claim that we have a right] of self-ownership, that people are entitled to the differential rewards which talent differences produce
 - “No egalitarian rule regarding external resources alone will, together with self-ownership, deliver equality of outcome, except, as in the case of joint ownership, at an unacceptable sacrifice of autonomy. There is a tendency of self-ownership to produce inequality, and the only way to nullify that tendency (without expressly abridging self-ownership) is through a regime over external resources which is so rigid it excludes exercise of independent rights over oneself” i.e. no Proviso and no initial ownership of resources
 - This tenet cannot be derived from self-ownership since self-ownership says nothing about rights in worldly resources beyond those that one is able to acquire through the exchange of one’s labour for goods that others are entitled to trade
 - It crucially does not have implications regarding the background of acquisition and distribution of worldly resources that provides the context for such exchanges
 - Therefore, the recognition of a libertarian right of self-ownership does not rule out a distribution of resources in accordance with the egalitarian proviso any more than it rules out a distribution of resources in accordance with a principle of joint ownership that renders this right virtually worthless
 - The egalitarian proviso does not deny self-ownership because the egalitarian proviso is about the background of acquisitions and the initial distribution of worldly resources that are not part of my body
 - A libertarian right of self-ownership is robust iff in addition to having a libertarian right to self, one also has rights over enough worldly resources to ensure that one will not be forced by necessity to come to the assistance of others in a manner involving the sacrifice of one’s life, limb or labour
 - The task is to show that egalitarianism is consistent with not merely an unfringed libertarian right of self-ownership but with such a right that is robust i.e. self-ownership is not only achieved when the able-bodied are deprived of so many resources that their right is not

robust and they are forced to work for the disabled on the pain of starvation

- Demonstration of a robust-libertarian right of self-ownership for all could as a matter of contingent fact be reconciled with equality if we assume more ordinary preferences for material resources among the able bodied
 - When, as is typically the case, the able-bodied have a preference for material goods in excess of that which is necessary for their subsistence, it would in principle (i.e. leaving aside problems of institutional or political infeasibility) be possible to provide a fairly wide range of disabled members of society with the opportunity to acquire enough worldly resources to generate a steady, generous, and lifelong flow of income from the investment, rental, or sale of these resources. Such income would enable these disabled individuals to better themselves to the same degree as able-bodied individuals who are themselves provided with the opportunity to acquire a fairly generous portion of worldly resources. The holdings of the able-bodied would be sufficiently generous that the disabled would be able to support themselves through truly voluntary exchanges with the able-bodied that did not involve forced assistance. By these means, one could achieve equality without any encroachments upon any robust-libertarian right of self-ownership.
 - To provide a simple and artificial illustration of such an arrangement, imagine an island society divided into a large number of able-bodied and a smaller number of disabled individuals. All the sea-front property is divided among the disabled, and farmable land in the interior is divided among the able-bodied. The able-bodied each voluntarily purchased access to the beach in exchange for the provision of food to the disabled. The result of this division of land is that the disabled and the able-bodied are each able to better themselves to an equal degree without anyone's being forced to come to the assistance of anybody else. The bounty of worldly resources and the preferences and number of the able-bodied that typify more realistically large and heterogeneous societies would ensure that land and other worldly resources can in principle be divided in a manner that allows a fairly wide range of the disabled—including some of those who are completely incapable of farming, harvesting, or gathering any food from the land—to better themselves from their holdings of worldly resources to the same degree as the able-bodied without forcing the able-bodied to come to their assistance
 - It is, for example, difficult to see what would in principle rule out the redistribution of land and other worldly resources to a fairly wide range of the disabled in a relatively prosperous society such as the United States so that they would have enough capital with which to purchase the goods of life through voluntary exchanges with able-bodied individuals
- Conclusion

- The state would need to engage in ex post facto adjustments to people's initial shares in order to achieve equality
 - It would not be proper for the State to level differences that arise from choices for which individuals can be held morally responsible so long as these choices are made against a background of property rights that ensure equality of opportunity of welfare
 - It would be necessary for it to engage in relatively frequent redistribution in order to ensure that such a background exists and persists and would be a mistake to regard these interventions as objectionable on the grounds that they constitute violations or infringements of the property rights of individuals, since they are instead a necessary means of realising a just distribution of worldly resources in accordance with the principle of justice in acquisition
- Appeals to the principle of rectification: Such an adjustment would be no more a violation or even an infringement of somebody's property rights than the taking of someone's holdings in order to rectify the fact that these holdings were unjustly passed down to him
- Some problems:
 - Welfarist specification clearly problematic → capabilities approach may rectify
 - Otsuka only shows that such a distribution could happen as a matter of contingent fact → but may not happen either → open question and too weak

Christman's distinction between income and control rights

Summary: Supplies an analysis of ownership and argues that there are two important (income and control) aspects of ownership that are justified separately according to crucially contrasting conditions. This, Christman claims, is general over all kinds of ownership rights associated with private property and argues that once the structure of property rights is made clear, the essence of self-ownership can be preserved while instituting mechanisms designed to maintain equality of condition

Importance of self-ownership

- Full property rights postulate and self-ownership has undeniable intuitive force
- Some egalitarians, in trying to fight for equality and their observation of differential talents, argue that due to the moral arbitrariness of differential talents, they deny self-ownership by assuming public ownership of skills

Structure of ownership

- Two elements of ownership
 - The rights to possess, use, manage, alienate, transfer and gain income from property

- Derivative from these are the rights to security in ownership, transmissibility, and absence of term (temporal limitations)
- From the first set of rights, there are rights to use, possess, manage property, and the right to capital (these concern the interest of owners to control the asset in question) and there are rights to income from assets (income is derived from the ownership of some asset via a contractual transaction)
 - Income derivable from an asset amounts to the right to increased benefit from the ownership that arises from having a system of transferable property and the existence of others' goods
 - Income rights over the scope of increased income accrued in virtue of holding an asset involves most centrally trade
- Notice how control rights are not really relational in nature i.e. they do not necessarily relate the owner with others for it to actualise (i.e. I can control an asset A if I were the only one on an island) but income rights do

Distinction between control/income rights

- If control rights are to be justified at all, essential reference must be made to individualist interests such as liberty, autonomy and self-determination; the source of justification for income rights, however, will necessarily be principles that govern the pattern of distribution of goods in the economy, considerations which are not reducible to those individualist interests
- Distinction #1: control rights need not be 'distribution sensitive' in their specification or value because it consists only of the agent's preference
 - Hence, control rights can be specified without reference to the distribution of resources as a whole, or to the existence of political and social structures that direct the flow of the distribution of resources
 - Income rights are essentially defined in ways that presuppose such structures and thus are conceptually tied to the distribution of goods in ways that control rights are not → value for the agent is not determinable simply by her preferences alone but depends on various natural factors and social institutions over which the agent has no necessary prior control
- Distinction #2: Income rights are uniquely connected to the distribution of goods in the economy
 - Connected in terms of transaction costs faced by potential competing trading partners, bargaining powers of others, surpluses created by the efficiency of the existence of market structures and information-gathering mechanisms
 - These factors are striking in that (a) the original possessor cannot claim that any of these factors are the way they are as a matter of independent right and (b) the possessors are, for the most part, not responsible for the nature and pattern of these characteristics of the distribution of goods and information

- Therefore, granting individuals income rights underwrites and fosters certain patterns of distribution in two ways: (a) the amount of benefits from trades accruing to individual possessors results from the distribution of resources in the surrounding economic sector and (b) the consequent distribution of resources is produced by the granting of individual income rights since each new round of trades sets the stage for constraints and opportunities of the next
- Rests on prices
- Distinction #2: Income rights are uniquely conditional
 - Control rights are to be understood in relation to others that everyone is unconditionally disallowed to enter without my expressed permission
 - However, income rights are not unconditional in this way: no one has a duty to pay or trade with me → hence although I may receive income from trade, it is contingent on the presence and cooperation of others in the market and it is contingent on the existence of stable rules of cooperation which govern the exchanges in question
 - I cannot claim ownership over the actions of others or nature which affords me the income → for income rights to be exercisable, it must be that (a) other people have certain preferences and (b) others have certain information, (c) barriers and transaction costs have a certain structure and (d) relatively permanent social structures have been set up to allow (a) through (c)

Implications on self-ownership and equality

- Cohen's argument is that to enforce a system of equality in the distribution of external resources in such a world would inevitably conflict with self-ownership, and the only way is to have public ownership over all initial resources, thereby reducing self-ownership to a mere formal right
- Self-ownership is compelling because it is one of the conditions for self-determination and independence → expression of autonomy and can no longer control and plan my own life
- Apparent conflict between self ownership and equality: imagine a world where all production is private and produced improved goods from their original stores by virtue of their skills. People have differential talents for this activity and hence have differential levels of production. Even if people begun with the same amount of resources, massive inequalities would result because the talented will be able to enrich themselves comparatively, while the barely endowed will barely subsist
 - How income rights resolves this tension: notice that the motivation for self-ownership consists in the strong interest I have for running my life. If I am forcibly directed by some other entity to produce something for someone else, there is something I sacrifice.

- However, to say that I alone possess the right to dispose of me and direct my actions does not entail that I have thereby the right to benefit from the exchange of my skills in any way available or crucially, in totality since this benefit is conditional on external macrostructures. This dampens the control claim I have via self-ownership
- Control rights, not income rights, are core to self-ownership.
- But income rights are those that generate inequalities.
- Therefore, preventing me from reaping these increased benefits does not ipso facto prevent me from controlling my life as long as the stores of goods that I enjoy is stable and predictable, since I can pursue the goals and projects essential to my liberty and autonomy
- Implications
 - The state must sever its protection of control rights from the structuring of income rights which it utilises to equalise resources → redistributive tax on all goods produced, the proceeds from which would be distribute to the worse off.
 - Retain the core of self-ownership as control rights
 - Will not generate an exact equality

General Left-Libertarianism

- Strives to be a middle ground between left egalitarianism by Rawls and Dworkin and the conventional libertarianism espoused by Nozick
- They side with libertarianism by espousing a strong universal right of self-ownership
 - They take self-ownership to mean that individuals own the products of their labour and by extension own the differential incomes those products can command
- They side with the egalitarian by holding that individuals have no right to a disproportionate share of external resources of the world which they convey through a reformulation of Locke's Proviso
- This eventuates an egalitarian distribution that follows from their libertarian commitments as "a matter of contingent fact" and is "redistribution without egalitarianism"

Criticism of Left-Libertarianism by Barbara Fried

Objection #1: Conception of self-ownership cannot do the work they hope to do

- Left libertarians tend to whittle down the requirements of self-ownership very substantially from the robust version of owning all products of their labour, they share the conviction that it implies a 'determinate, complete and consistent' set of legal rights
- But this fails because of the realist functional reformulation of property rights since the expansion of one's legal rights entails the diminution of another's

- Left and right libertarians have only paid verbal obeisance to it and ignoring it entirely
- Left libertarians have reached radically divergent conclusions from the right and from each other about the precise regime of rights implied by self-ownership
 - Right libertarians unanimously agree that self ownership means a full right to all benefits from one's assets
 - Left libertarians range from Cohen who thinks that taxation amounts to part ownership of others (thus rejecting self-ownership to preserve equality) while Christman, Van Parijis and Vallentyne conclude that self-ownership is consistent with even a confiscatory level of ex post taxation of earnings
 - Otsuka thinks that his robust version of self-ownership permits any tax on the talented, provided only that they, like everyone else, are not 'forced on the pain of starvation to work for the badly off'
 - Confusion over what self-ownership is meant to vindicate: libertarianism seems to move seamlessly through the formalist, negative liberty definition of self-ownership as equivalent to formal legal rights against interference, to the functional "positive liberty" view that it is equivalent to substantive power to effect one's desires
 - The fact that even where libertarians agree on the goals a commitment to self-ownership is meant to vindicate, they had read out of that commitment vastly different policy implications casts doubt on the strong claim that any particular regime of property rights is logically entailed by the concept of self-ownership
 - It raises the concern that left-libertarians are pulling some very thick conclusions out of some very thin premises → latitude to find self-ownership in whatever they are looking for
- Inherent malleability of ownership
 - Consider that self-ownership implies full liberal ownership over one's body and a right to control one's body free of coercive interference → what does this mean operationally? If I pass myself off as you, have I coercively interfered with your right to control your body?
 - Does not fair much better as a generative principle as one's right to labour and to the fruits of one's labour → no functional content given to ownership → equivocation on ownership
 - Because I "own" my body, we must therefore "own" our labour and therefore "own" its fruits → practical issues with operationalising own
 - Owning labour → owning its fruits is not obviously entailed
- Thin line between impermissible and permissible types of taxation
 - Christman defends the distinction between an ex ante tax (on endowments) and an ex post tax (on value) in this way: an endowments tax, by taxing people according to their earnings capacity, pushes them into higher-earning

occupations in order to pay their tax bill, raising frequently expressed concerns about 'slavery of the talented' vs a tax on exchange value does not force the talented to produce anything or prohibit them from doing so

■ All it does is redistribute what is produced

- But the distinction is quite thin since decisions about what to produce to begin with is made in light of the tax liability that will attach to earnings and are affected in various ways by that impending liability
- All government interventions in the economy alter the relative attractiveness of various work options, and of work in any form versus leisure, and to that extent distort labour choices
- Left libertarians depart from the right by narrowly defining the fruits of one's labour that one owns into a null set
 - Vallentyne: goods produced without any external resources
 - Otsuka: only goods produced autarchically (without assistance)

Objection #2: Egalitarian Provisos tend to eliminate the distinction between left-libertarianism and more conventional strains of egalitarianism

- Producing a reading of the proviso that is distinct from liberal egalitarianism requires one at minimum to (a) identify a discrete set of "scarce natural resources" subject to the proviso stopping somewhere short of the more comprehensive list of assets traditional egalitarians think must be equalised and (b) devise a redistributive scheme correcting only inequalities in the distribution of those scarce resources, not inequality more generally
- (a) What counts as scarce resources
 - Minimalist end: Steiner thinks only natural, tangible resources
 - Extreme: Van Parijs' suggestion that the external resources subject to equitable division include "the whole set of external means that affect people's capacity to pursue their conceptions of the good life, irrespective of whether they are natural or produced"
 - Steiner in recent work suggests that the proviso should include the "germ-line genetic information" contained in all living things, turning all talents into a collective effort
 - Most left libertarians stop short of including talents and efforts in the proviso but then proceed to argue that if individuals use any external means covered by the proviso to exploit their talents, the state is justified (under the proviso) in taxing all or part of the return to those talents and effort
- (b) Redistribution of the tax base
 - Steiner notes that left libertarianism implies a combined tax and transfer scheme leaving all individuals at the end of the day with equal shares of such resources in kind or in cash equivalents

- Generate a sizeable basic income for everyone and satisfy their basic needs
- Is this not the same as egalitarianism?
- Smuggling of egalitarianism into libertarian structures

The Idea that equality underwrites liberty

Relational Equality and Non-domination

- Step 1: Why Relational Equality
 - After determining that self-ownership and liberty should rightly be reconceived of as 'autonomy' rather than full property rights, it is equally important to define equality. It is important to note that Nozick makes no substantive interpretation of the term 'equality'. All he says is that an equal distribution must be patterned in some way. I am going to suggest that Cohen and Otsuka are wrongly biased in thinking of equality as merely 'equality of condition'. Cohen explicitly states that the egalitarian impulse is to correct for brute luck and involuntary disadvantages. Otsuka never really states that equality is, but it can be seen in his egalitarian proviso, where one may acquire unknown resources if and only if "everyone else can acquire an equally advantageous share of unowned worldly resources", that he is trying to also rectify involuntary disadvantages – in this case, external acquirement of resources by others .
 - Anderson offers another line of thought: that equality is relational in nature. What makes me equal in standing to others is the fact that I can participate fully in civil society. This is justified from our equal moral worth as human beings. Our equal moral worth does not immediately instantiate the consequence that each individual ought to be compensated for our involuntary disadvantages. What it does suggest is that each individual ought to be respected *in spite of* their involuntary disadvantages; respect that manifests as full participation in civil society. Oppression and exclusion are the primary culprits undermining respect, not distribution. I think that this can be strengthened by an interpretation of the conditions of justice from social contract theory. In social contract theory the conditions of justice, as seen from Rousseau's general will and Rawls' Original Position, holds if and only if individuals stand in relation to one another as equals – that my private will matters as much as yours such that only the intersection (rather than the union) of all our private wills form the general will. The kind of patterns of equal distribution that emerges depends on the interpretation of the conditions of justice. Nevertheless, the point is that the conditions of justice necessarily instantiate equality as fundamentally relational.
- Step 2: Now, I am not going to suggest that relational equality does not involve redistribution. In fact, it might involve a great amount of redistribution if people

begin their lives in abject poverty, so that they can participate in civil society. But what I am going to suggest is that the explanation to redistribution for relational equality makes it more congruent with the libertarian mandate of self-ownership.

- Having defined self-ownership and liberty as genuine autonomy, and equality as relational and not equality of condition, I am going to contend that the conflict of equality and liberty is simply an illusion. I make two arguments to support this claim: the first is the argument that equality is a precondition for liberty; the second is a reformulation of the proviso and the political economy at large to demonstrate the achievement of both equality and liberty.
- Under the libertarian premise of self-ownership, it is ambitious to declare that equality is a precondition for liberty. The intuitive argument that a poor person is not free can be seen to be advanced by Waldron, where he argues that homelessness renders one 'comprehensively unfree'. I have no place to engage in private actions (i.e. to urinate and sleep) because I lack property. Nozick, however, famously dismisses that the 'propertyless proletariat' is not unfree because they fulfil self-ownership – just because they have no choice but to sell their labour for bare minimum wages because the alternative is to starve does not mean that they lose self-ownership. It is an easy task to reject Nozick's argument since we have conceived liberty as genuine autonomy – it is clear that the homeless have no autonomy since they cannot do anything they want. But Nozick may respond in this way: if choicelessness compromises autonomy and self-ownership, does everyone not face some sort of choicelessness? The middle class man who would like to purchase a Chanel handbag cannot do so, and part of his life plan is to shower his wife with love. He is 'choiceless' in that he has to choose something else. *Reductio ad absurdum*, the hold of choicelessness on self-ownership I have suggested cannot be coherent. Here, I would like to borrow the logic of Joshua Cohen's analysis of deliberative democracy. One benefit of deliberative democracy, it is claimed, is that it protects autonomy – our preferences are not forcibly changed by a dictator. But consider the fact that deliberation requires me to change my preferences in some way; I cannot have what I want – my wants must be compatible with others. In deliberative democracy, I face an analogous set of constraints that I cannot realise my plan as I have it now. What is distinctive, however, is that under the deliberative scheme, my preferences change in ways consistent with autonomy because it goes through fair and reasoned discussion. Similarly, the middle class man who is unable to purchase the Chanel handbag will have to reformulate his life plan, but through reasoned reflection over what is available to him. On the contrary, the propertyless proletariat faces no genuine choice, and is situated in an environment (ostensibly of homelessness) that affords him no genuine opportunity to reformulate his life plan (to starve?).

- We can see now how relational equality – particularised as the abolition of marginalised homelessness in this case – is a requirement for the realisation of a genuinely autonomous life plan. The equality required above is not “of condition”, for I made no suggestion that a genuine autonomous reflection requires one to have the same opportunities as others; but instead simply relational in nature, that my condition be sufficiently well-off such that I can lead a life that I genuinely desire after reflection. Redistribution is simply instrumental to the achievement of civic participation and autonomy; in this way, relational equality explains redistribution in terms of the goal of autonomy and self-ownership that libertarianism tries to protect.
- Step 3: Establishing the Principle
 - Is there a principle that may facilitate the achievement of liberty/self-ownership and equality? Cohen suggests that only under a joint scheme of ownership can the two values eventuate together. I will not delve into his idea, since I will demonstrate its falsity by counterexample. The main focus for Nozick (and his critiques) is through the formulation of the principle of acquisition i.e. the Lockean proviso. This makes sense, because the principle sets the stage for how property is distributed. Nozick formulates his proviso as one that permits the acquisition of unowned land insofar as it leaves people “better off” than they would be under general use. But as Cohen points out, this makes the distribution of goods simply on a first-come-first-serve basis – for imagine if A and B would make the other better off if they acquired it, but A would make B even more better off if he acquired it. Yet, A and B would have equal claim on the land depending on who acquires it first. The corollary of this is to question why the resource being under general use is at all the relevant baseline comparison.
 - Otsuka proposes an “Egalitarian proviso”, that if you leave “enough for everyone else to acquire an equally advantageous share of unowned...resources”, you can acquire the land. I make two comments on this.
 - First, it heavily restricts the range of plausible distributions compatible with this principle. Perhaps this is the intention, but it is far too *patterned* for any self-respecting libertarian to accept.
 - Second, it is difficult to imagine how this would work in practice – it is clearly susceptible to the problem of expensive tastes. If A needs 10 out of 11 acres of land to yield the same welfare as B using 1 acre, then this proviso not only says that A is entitled to 10 acres, but that B is entitled to only 1 acre. After all, Otsuka by his own admission uses the welfarist metric.
 - I am going to suggest the following proviso: You may acquire previously unowned resources iff you leave enough such that others can acquire enough

resources to participate in civil society. Furthermore, I am going to add a restriction to Nozick's principle of transfer: you may not receive a full voluntary transfer if it grants you the political power to exclude and oppress others; if you do, you will be subject to an income tax. Nozick might suggest, as in the Wilt Chamberlain example, that all that is necessary is a voluntary transfer of resources. But I am going to suggest that, under situations of imperfect information that characterise all real-world transactions, people do not consent to the accumulation of power within one person that allows them to oppress another. Going back to the proviso, observe that this proviso and the amended transfer principle is consistent with a wide-range of distributions; it merely cuts off the extreme states where people have either too much, or too little. So, this should be palatable to the libertarian. These terms of 'too much' and 'too little' are characterised by instances of exclusion and oppression which undermine relational equality. The foregoing (and admittedly crudely formulated) principles clearly achieve equality of relation – no acquisition or transfer must be allowed to exclude others and allows for sufficient amount of resources so that everyone can fully involve themselves in civic life. It also clearly achieves self-ownership – taxation (of the super-rich) does not remove the conditions that allow me to make genuine choices over my life plan; and it elevates people's conditions to be actually able to make genuine life choices. Even if the libertarian full property rights thesis pushes through, as Christman points out, the conditional nature of income on others means that we lack unconditional rights on income. The achievement of relational equality does not compromise self-ownership and liberty, and instead ensures autonomy.

Waldron's Homelessness and the Issue of Freedom

Offers a more direct argument that equality or at least some sufficientarian idea is necessary for negative liberty

- Waldron's basic argument is that one is comprehensively unfree due to homelessness, because they lack private spaces to do private actions such as sleep etc
 - They are constantly interfered by private property laws
 - We can connect this with Steiner's thesis that freedom is the physical possession of objects → and the poor and homeless do not possess any objects at all and hence are comprehensively unfree
- The free market obviously leads to such extreme inequalities, so it seems strange that libertarians defend liberty while allowing for some comprehensive unfreedom in some individuals
 - So, it seems that some minimum form of equality underwrites the achievement of liberty in the negative sense

- Reply: Nozick's conception of liberty is not necessarily negative. While he may conceive of unfreedom as the interference through taxation or government interference as such, the explanation for why this is considered as unfreedom is one that connects with autonomy – that it violates my ability to make choices by myself and a sense of self-possession.
 - But can we genuinely think that the homeless are able to achieve this notion of self-ownership?
- Second Reply: the reason why such inequalities may exist is not because of the free market but because of exploitations that violate individuals' autonomy
 - Libertarians often conceive of a free market as perhaps one characterised by perfect competition → complicated by market imperfections such as monopsonies that purchase workers at a lower wage
 - In other words, the worker is being used as a means to an end, rather than an end in themselves because they are not being paid a fair wage
 - The libertarian could claim that their ideal of a free market is in some sense unstable because a free market could unravel itself through the agglomeration of power within a single individual
 - But not very convincing because libertarians like Friedman condemn this

Neglected Importance of the Second Principle of Justice in Transfer

- Almost all left egalitarians focus exclusively on the Lockean proviso to generate a distribution that is roughly equal in some sense
 - Examples: Otsuka, G. A. Cohen
 - Obviously important because Nozick's Lockean Proviso is rife with problems
- But my claim is that it is not fruitful to look into the Lockean Proviso and attempt to revise it
 - Relevance: Wolff highlights that our concerns for policy shape political discourse even for philosophy. Changing the Lockean Proviso gives us almost no guide to policy, or an extremely complex one that demands a lot on the principle of rectification. It just does not seem fruitful to go back to the genesis of society and work from there
 - Difficulty of information: because Nozick proclaims his theory to be one that is historical, this means that the Lockean Proviso must be one that actually happens. The contrast is clear with Rawls: the fact that the original position and the contracting situation is hypothetical is not germane to the strength of his theory and its implications. However, whether what happened at the initial state of the world matters for Nozick – but this is impossible to know. In fact, it is unlikely that it was followed – this means that Nozick is pressed to

call all societies unjust or be committed to an extremely intrusive policy of rectification

- Difficulty of Implication: It is very involved to prove that if we start from $t=0$ with Otsuka's principle, then we will generate satisfactory patterns of distribution. Call this the indeterminacy of the free market. It may or may not happen.
- My motivation for looking into the second principle is because of the following facts:
 - There are two ways we can read the notion of a 'free' market: (i) the market is 'free' from interference by the state and free to evolve into whatever it evolves into or (ii) the market is 'free' in the sense that it is characterised by voluntary transaction. There is a strong voluntariness here – it means that there is no exploitation by anyone whatsoever, whether it is the state or their fellow market participants
 - Now, the Libertarian defends the free market is definitely, in part, because of (i). But notice that (i) offers no substantive normative defence because it makes no appeal to the notion of self-ownership. In other words, (i) is justified through its appeal to (ii). The interference from the state violates any sort of voluntariness present in the market
 - This is where the motivation is animated: consider how the free market clearly has internal forms of exploitation that compromise any claim to strong voluntariness – the creation of sweatshops that exploit workers, the heavily depressed wage structures that underpay workers. This violates the Kantian principle of not instrumentalising individuals. So, it seems that the 'free' market is an inherently unstable notion
- It seems then, that the libertarian is illusioned by the false equation that the free market is perfectly competitive or disciplined by market forces so as to sustain voluntariness.
 - Why are libertarian's conceptions of the free market so divorced from the reality of the political economy and market imperfections?
- Milton Friedman rejects that monopolies generate more evil than state intervention?
 - Does he not then become a utilitarian of rights? Which is what Nozick rejects for good reason
 - Also, can the state not intervene to support the very value that libertarians prioritise? It seems that, on the account of Nozick's development of the ultraminimal state, it can → the freedom secured through protections by the night watchman
- This reaches to my reconciliation of the problem: perhaps the Lockean Proviso is important, but the principle of transfer is equally so. But the Principle of Transfer as is is fine – what is required is a deeper specification of what it means to have *voluntary* transactions

- Voluntary transactions = self ownership → criticise self-ownership to imply just having property rights but some sort of autonomy and choice because of its Kantian foundations
 - How to achieve autonomy and choice → Nozick and the propertyless proletariat → reject this by using Joshua Cohen's preference changing that is inconsistent with autonomy
- Clear that market imperfections and market power suppress autonomy through exploitation
 - The link is clear: Anderson's relational equality underwrites liberty
 - So, the principle of transfer must sustain people's relational and status equality
- We can do this in two ways
 - We have a principle of transfer that constrains market power (i.e. through antitrust laws)
 - We have a principle of transfer that enforces a minimum level of wages or that polices the labour market and the wage structure
 - The market is no longer free in the first sense, but is free with stability in the second sense